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Criminal Procedure (BNSS 2023) — Unit I

Read it like a story. Remember it for life.

LL.B. (3 YDC) · Semester V · Bharatiya Nagarik Suraksha Sanhita (formerly CrPC)

1. **Object and background — from CrPC to BNSS** — 1861 → 1898 → 1973 → 2023 · why criminal procedure exists
2. **BNSS vs CrPC — what is new** — Zero FIR · e-FIR · timelines · technology · victims
3. **Important definitions** — s.2(1) BNSS — bail, offences, complaint, investigation, inquiry, trial, victim
4. **Cognizable and non-cognizable offences · FIR** — Who can arrest without warrant · how the police start a case
5. **Bailable and non-bailable offences · bail** — Bail is the rule, jail the exception
6. **Investigation, inquiry and trial** — Three stages · who does what · charge-sheet
7. **Classes of criminal courts and their powers** — s.6 · ss.8–14 · sentencing powers ss.22–23
8. **Directorate of Prosecution and public prosecutors** — ss.18–20 · s.360 withdrawal · the prosecutor's duty of fairness

9 **Defence lawyer, legal aid and correctional methods** — Right to counsel · free legal aid · prisons, parole, probation

10 **Constitution and criminal procedure** — Arts. 20, 21, 22 · rights of the arrested · fair trial

How to read these notes

Each chapter opens with a **big idea**, then **the story of the topic** — read it like a novel, the highlighted words are the ones examiners look for. Then come the **definitions, rules and exceptions**, the **landmark cases as comic stories**, a ✍️ **write-it-like-this** exam frame, a quick self-test and a ★ **memory hook**.

🙏 Spoorthi Oum 🙏

CHAPTER 1 · 8 PARTS

Object and background — from CrPC to BNSS

1861 → 1898 → 1973 → 2023 · why criminal procedure exists

> **Big idea**
>
> Criminal law (BNS) says **what** a crime is. Criminal procedure (BNSS) says **how** the State investigates, arrests, tries and punishes — **fairly**. It is the shield of the citizen as much as the sword of the State.

📖 The story of this topic

Think of criminal justice as a three-part machine. The **Bharatiya Nyaya Sanhita (BNS)** is the list of **what** is a crime and its punishment. The **Bharatiya Sakshya Adhiniyam (BSA)** says **how** facts are proved. And the **Bharatiya Nagarik Suraksha Sanhita (BNSS)** is the **engine** that makes the other two work — it tells the police how to register a case, arrest, search and investigate, and tells courts how to grant bail, frame charges, try, sentence and hear appeals.

Why does this engine matter so much? Because a criminal case is the most powerful thing a State can do to a citizen — it can take away his **liberty**, even his life. So procedure must be a shield for the citizen as much as a sword for the State. A fair procedure means the

accused is **presumed innocent**, is told why he is arrested, can get a lawyer and bail, and gets a **speedy and fair trial**; the victim is informed and heard; and society gets the guilty punished.

The history is a story of slow improvement. The first Code came in **1861**; the long-lasting **1898 Code** ruled for 75 years. The **41st Law Commission Report (1969)** reviewed it fully, leading to the **CrPC 1973**, in force from **1 April 1974**. Its biggest change was **separating the judiciary from the executive** (Art. 50): **Judicial Magistrates** try cases, while **Executive Magistrates** (Collectors, SDMs) maintain public order. Later reports such as the **Malimath Committee (2003)** pushed for speed and victims' rights, and many amendments followed.

In December 2023 Parliament passed the BNSS; it received assent on **25 December 2023** and came into force on **1 July 2024**, with **531 sections in 39 chapters**. It applies throughout India — except that, apart from Chapters IX, XI and XII, it does not apply to **Nagaland and tribal areas** unless the State notifies it (**s.1(2)**). Offences under the BNS are dealt with under the BNSS, and offences under other laws too, **subject to** any special procedure those laws lay down (**s.4**). Cases already pending on 1 July 2024 continue under the **old CrPC** (**s.531**).

A smart exam habit: since most landmark judgments were decided under the CrPC, always write both numbers — 'FIR under **s.173 BNSS (old s.154 CrPC)**'. It shows the examiner you know the old law and the new.

The long road to BNSS TIMELINE

1861

First Code of Criminal Procedure (Act XXV of 1861) for the mofussil; revised 1872 and 1882.

1898

Code of Criminal Procedure, 1898 (Act V of 1898) — ran for 75 years.

1969

41st Report of the Law Commission — a full review of the 1898 Code.

1973

CrPC, 1973 (Act 2 of 1974), in force **1 April 1974**. Key change: **separation of the judiciary from the executive** (Art. 50) — Judicial Magistrates try cases; Executive Magistrates keep order.

2003

Malimath Committee on Reforms of the Criminal Justice System — speed, victims, investigation.

2005 · 2008 · 2013 · 2018

Major CrPC amendments — plea bargaining (2005), s.41A notice & victim's appeal (2008/09), offences against women (2013, 2018).

Dec 2023

BNSS, 2023 passed by Parliament; Presidential assent **25 December 2023**.

1 July 2024

BNSS in force, along with the BNS (replacing IPC) and the Bharatiya Sakshya Adhiniyam (replacing the Evidence Act). **531 sections, 39 chapters.**

Objects of criminal procedure



Investigate
find the truth through police machinery



Fair trial
accused heard; presumed innocent until proved guilty



Speed
justice delayed is justice denied — timelines



Protect liberty
limits on arrest and detention (Arts. 21, 22)



Victim's voice
information, hearing, compensation, appeal



Public order
preventive provisions — security for peace, nuisance

Substantive vs procedural criminal law

COMPARE

Substantive (BNS 2023)	Procedural (BNSS 2023)
• defines offences • fixes punishments • e.g. theft, murder, cheating	• machinery to enforce BNS • FIR, arrest, bail, investigation, trial, appeal • also applies to offences under other laws, unless they provide otherwise

VS

Where the BNSS applies and when it does not

ss.1, 4, 5

- ✓ Applies throughout India, but — except Chapters IX, XI and XII — **not to Nagaland and tribal areas** unless the State Government notifies s.1(2).
- ✓ Offences under the **BNS** are investigated, inquired into and tried under the BNSS s.4(1).
- ✓ Offences under **other laws** — also under the BNSS, **subject to** any special procedure in that law s.4(2).
- ✓ Nothing in the BNSS affects a **special or local law** or special jurisdiction, unless specifically provided s.5.

× Exceptions / limits

✗ **Pending matters**: appeals, inquiries, trials and investigations pending on 1 July 2024 continue under the **old CrPC** s.531(2)(a).

✗ Special Acts (e.g. NDPS Act, PMLA, UAPA) have **their own** procedure on bail, arrest, etc., which prevails where inconsistent.

📌 Also remember

Exam tip: the CrPC section numbers you see in older textbooks still matter — cases decided under the CrPC are still good law for the matching BNSS section. Write both: **'s.173 BNSS (old s.154 CrPC)'**.

✍️ Write it in the exam like this

Q. Explain the object, background and scheme of the Bharatiya Nagarik Suraksha Sanhita, 2023.

1. Introduction — substantive vs procedural criminal law; BNS, BSA, BNSS.
2. History — 1861, 1898, 41st LC Report, CrPC 1973 (separation of judiciary), Malimath, BNSS 2023 (dates, 531 sections).
3. Objects — fair investigation, fair trial, speed, liberty, victims, public order.
4. Scheme and application — ss.1, 4, 5, 531.
5. Constitutional basis — Arts. 14, 20, 21, 22, 39A, 50.
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. When did the BNSS come into force?

1 July 2024. Assent was given on 25 December 2023.

Q2. How many sections does the BNSS have?

531 sections in 39 chapters (the CrPC had 484 sections).

Q3. What did the CrPC 1973 change most importantly?

It separated the judiciary from the executive in criminal courts (Art. 50) — trials by Judicial Magistrates; Executive Magistrates for maintenance of order.

★ **Memory hook**

1861 · 1898 · 1973 · 2023. BNS = *what* is a crime; BNSS = *how* to deal with it; BSA = *how* to prove it.

CHAPTER 2 · 6 PARTS

BNSS vs CrPC — what is new

Zero FIR · e-FIR · timelines · technology · victims

Big idea

The BNSS keeps the **skeleton of the CrPC** but adds **technology, time-limits and victims' rights**. Learn the changes in pairs: old section → new section.

📖 The story of this topic

Imagine Shreya, a college student from Hyderabad, whose phone is snatched while she is travelling in Pune. Under the old practice she might have been told 'go to the station where it happened'. Under the BNSS she can give information at **any police station** — a Zero FIR — or even **electronically** (an **e-FIR**), which she must sign within **three days** (**s.173(1)**). The station registers it and transfers it to the station with jurisdiction. She gets a **free copy**, and within **90 days** the police must tell her how the investigation is progressing (**s.193(3)**).

That one story captures the BNSS's three big themes: **technology**, **time-limits** and **victims**. Searches and seizures must be **audio-video recorded** and sent to the Magistrate (**s.105**). For offences punishable with **seven years or more**, a **forensic team** must visit the

crime scene (**s.176(3)**). Summons, evidence and even trials may be held in **electronic mode** (**s.530**).

Time-limits push cases forward: the **charge** should be framed within **60 days** of the first hearing on charge (**s.251**); **judgment** within **30 days** of the end of arguments, extendable to **45** (**s.258**). An accused who is a **proclaimed offender** and absconds can be **tried in absentia** (**s.356**), so a trial need not wait forever.

For offences punishable with **3 to 7 years**, the BNSS introduces a **statutory preliminary enquiry**: with a **DSP's permission**, the officer may check within **14 days** whether a prima facie case exists before investigating (**s.173(3)**). For petty offences, Magistrates can award **community service** (**s.23**). The **Directorate of Prosecution** is expanded with State and District Directorates (**s.20**, old s.25A). **Metropolitan Magistrates** disappear as a separate class. Property that is **proceeds of crime** can be attached (**s.107**), and **handcuffs** may be used for listed serious offenders (**s.43(3)**).

The best way to learn the BNSS is in **pairs**: old section → new section. FIR **154 → 173**; investigation order **156(3) → 175(3)**; remand **167 → 187**; charge-sheet **173 → 193**; bail **436–439 → 478–483**; undertrial detention **436A → 479**; withdrawal **321 → 360**.

Section map — old to new TABLE

Topic	CrPC 1973	BNSS 2023
Definitions	s.2	s.2(1)
Classes of criminal courts	s.6	s.6
Arrest without warrant	s.41, 41A	s.35
FIR — cognizable cases	s.154	s.173
Non-cognizable information	s.155	s.174
Police power to investigate · Magistrate's order	s.156(1), 156(3)	s.175(1), 175(3)
Remand / police custody	s.167	s.187
Police report (charge-sheet)	s.173	s.193
Withdrawal from prosecution	s.321	s.360
Bail: bailable · non-bailable · anticipatory · HC/Sessions	ss.436, 437, 438, 439	ss.478, 480, 482, 483
Maximum detention of undertrials	s.436A	s.479
Victim's appeal against acquittal	s.372 proviso	s.413 proviso

Headline changes in the BNSS

0️⃣

Zero FIR & e-FIR

information may be given at any station, regardless of area, or electronically; signed within 3 days s.173(1)

🔍

Preliminary enquiry

for offences of 3–7 years, with a DSP's permission, within 14 days s.173(3)

🎥

Video of search & seizure

audio-video recording of search and seizure, sent to the Magistrate s.105

🧪

Forensics

forensic team to visit the scene in offences punishable with 7 years or more s.176(3)

🤦

Trial in absentia

of proclaimed offenders who abscond s.356

⏳

Timelines

charge within 60 days of first hearing on charge s.251; judgment within 30 days of arguments, extendable to 45 s.258

📣

Victim updates

police to inform the victim of progress within 90 days s.193(3)

💻

E-proceedings

summons, evidence and trials may be in electronic mode s.530



Community service

a new punishment Magistrates may award for petty offences s.23

What disappeared, what appeared COMPARE

Dropped

- **Metropolitan Magistrates** as a separate class
- the term 'lunatic' (now 'person of unsound mind' / 'intellectual disability')

VS

Added

- **Directorate of Prosecution** expanded — State and District Directorates with defined functions s.20 (old s.25A CrPC)
- property attachment of **proceeds of crime** s.107
- **handcuffing** permitted for listed serious offenders s.43(3)

✍️ Write it in the exam like this

Q. What are the important changes introduced by the BNSS, 2023 over the CrPC, 1973?

1. Introduction — BNSS in force 1 July 2024; 531 sections.
2. Technology — e-FIR, video of search (s.105), forensics (s.176(3)), e-proceedings (s.530).
3. Speed — s.173(3) preliminary enquiry, s.251, s.258, s.356 trial in absentia, s.193 timelines.
4. Victims — free FIR copy, progress update in 90 days, hearing before withdrawal (s.360).
5. Others — community service (s.23), Directorate (s.20), Metropolitan Magistrates dropped, s.107, s.43(3), s.479.
6. Conclude with a short comparison table.

Quick self-test ANSWERS BELOW EACH

Q1. What is a Zero FIR?

An FIR registered at any police station irrespective of where the offence occurred; the station then transfers it to the station with jurisdiction — now in s.173(1) BNSS.

Q2. Which BNSS section corresponds to s.154 CrPC?

s.173.

Q3. Within how many days must judgment be pronounced after arguments?

30 days, extendable to 45 days for reasons recorded — s.258.

★ *Memory hook*

Z-E-P-V-F-T: Zero FIR · E-FIR · Preliminary enquiry · Video of search · Forensics · Timelines.

CHAPTER 3 · 7 PARTS

Important definitions

s.2(1) BNSS — bail, offences, complaint, investigation, inquiry, trial, victim

> **Big idea**
> Definitions are the **alphabet** of criminal procedure. Each word decides **who acts** — police or Magistrate — and **what rights** the accused gets.

📖 The story of this topic

Every chapter of criminal procedure turns on a few words. Let us follow one imaginary case to see them in action. Ganesh's shop is burgled at night. He rushes to the police station and tells the officer what happened — that is **information** recorded as an **FIR**. Burglary (house-breaking with theft) is a cognizable offence (**s.2(1)(g)**): a police officer may **arrest without warrant**. Had someone merely defamed Ganesh, that would be **non-cognizable** (**s.2(1)(o)**) — no arrest without a warrant, no police investigation without a Magistrate's order.

The police now start an investigation (**s.2(1)(l)**) — **all proceedings for collection of evidence** by a police officer (or a person authorised by a Magistrate, but **never a Magistrate himself**). They visit the shop, lift fingerprints, record statements, and arrest a suspect, Raju. Raju's lawyer applies for **bail** — under **s.2(1)(b)**,

the release of a person accused or suspected of an offence **from the custody of law**, on conditions, on executing a **bond** (without surety) or a **bail bond** (with surety). Whether bail is a **right** depends on whether the offence is **bailable** (**s.2(1)(c)**) — as shown in the **First Schedule**.

Now suppose Ganesh had gone straight to a **Magistrate** with a written allegation. That is a complaint (**s.2(1)(h)**): an allegation, oral or written, **to a Magistrate**, with a view to his taking action, that **some person — known or unknown —** has committed an offence. A **police report is not a complaint** — except that a police report in a **non-cognizable** case is **deemed** a complaint. When the Magistrate examines Ganesh and witnesses to see whether to issue process, that is an inquiry — every inquiry **other than a trial**, conducted by a **Magistrate or court**. The **trial** itself (not defined) is the stage where guilt is decided.

Is Raju's case a **warrant-case** or a **summons-case**? Burglary is punishable with **more than two years**, so it is a **warrant-case**; any case punishable up to two years is a **summons-case**. The type decides the trial procedure. And who is the victim? Ganesh — a person who suffered **loss or injury** because of the accused's act — and the definition **includes his guardian or legal heir**. This matters: in *Mallikarjun Kodagali*

(2018) the Supreme Court held that a victim can **appeal against acquittal as of right**, without leave (proviso to s.372 CrPC, now **s.413 BNSS**).

One more twist. In *Mohd. Yousuf v. Afaq Jahan* (2006), a complainant's forgery complaint was sent by the CJM to the police under **s.156(3) CrPC (now s.175(3) BNSS)** before taking cognizance. The High Court thought a Magistrate could not order an FIR. The Supreme Court disagreed: ordering investigation is a **pre-cognizance** step, and the police must **register an FIR** and investigate.

Words to own DEFINITIONS

1 Bail s.2(1)(b)

release of a person accused or suspected of an offence **from the custody of law**, on conditions imposed by an officer or court, on executing a **bond or bail bond**.

e.g. Released after signing a bond for ₹20,000 with one surety.

2 Bail bond / Bond s.2(1)(d) · (e)

bail bond = undertaking for release **with surety**; **bond** = personal bond or undertaking **without surety**.

3 Bailable offence s.2(1)(c)

an offence shown as **bailable in the First Schedule** or made bailable by any other law; every other offence is **non-bailable**.

e.g. Simple hurt — bail is a right.

4 Cognizable offence / case s.2(1)(g)

an offence for which a **police officer may arrest without warrant**, under the First Schedule or any other law.

e.g. Murder, robbery, rape, dowry death.

5 Non-cognizable offence s.2(1)(o)

an offence for which a police officer has **no authority to arrest without warrant**.

e.g. Defamation, simple public nuisance.

6 Complaint s.2(1)(h)

any allegation, **oral or written, to a Magistrate**, with a view to his taking action, that **some person (known or unknown)** has committed an offence — **not a police report**.

e.g. A cheque-bounce complaint filed directly before the Magistrate.

7 Investigation s.2(1)(l)

all proceedings for the **collection of evidence** by a **police officer** or any person (other than a Magistrate) authorised by a Magistrate.

e.g. Visiting the scene, recording statements, seizing the weapon.

8 Inquiry s.2(1)

every inquiry, **other than a trial**, conducted by a **Magistrate or court**.

e.g. Inquiry into a complaint before issuing process; inquiry for maintenance.

9 Trial

not defined; it is the judicial stage after charge / accusation where guilt is decided — ends in **acquittal or conviction**.

10 Warrant-case / Summons-case s.2(1)

warrant-case: offence punishable with **death, life imprisonment or imprisonment for more than two years**; **summons-case**: any other case.

e.g. Theft (up to 3 years) — warrant-case; public nuisance — summons-case.

11 Victim s.2(1)

a person who has suffered **loss or injury** because of the act or omission of the accused — **includes guardian or legal heir**.

12 Police report s.2(1)

the report by a police officer to a Magistrate under s.193(3) — commonly called the **charge-sheet** (or final report).

Complaint vs FIR — asked in 2019 COMPARE

Complaint

- made to a **Magistrate**
- any offence — cognizable or not
- oral or written
- Magistrate examines complainant on oath s.223

VS

FIR

- given to the **officer in charge of a police station**
- only **cognizable** offences
- reduced to writing / e-FIR, signed, copy free to informant
- sets the criminal law in motion through the police

⚖️ *Case story*

Mohd. Yousuf v. Afaq Jahan

2006 · Supreme Court of India

🧔 Mohd. Yousuf (complainant) 👩 Afaq Jahan (accused)

👨‍⚖️ Magistrate

Complainant

My signature as a loan guarantor was forged. The CJM sent my complaint to the police under s.156(3).

Accused

A Magistrate has no power to order the police to register an FIR! (The High Court agreed and quashed the charge-sheet.)

Supreme Court

Wrong. Before taking cognizance, a Magistrate may order investigation under s.156(3) — a **pre-cognizance** step.

Supreme Court

Nothing illegal in directing registration of an FIR. The police register it and investigate in the ordinary way.

Mohd. Yousuf complained to the Chief Judicial Magistrate that his signature had been **forged** to show him as a loan guarantor. The CJM did **not take cognizance** but directed the police to register and investigate under **s.156(3) CrPC** (now **s.175(3) BNSS**). An FIR was registered and a charge-sheet filed. The accused, Afaq Jahan, moved the High Court, which **quashed** the charge-sheet, holding that the Magistrate had no power to order registration of a case.

The Supreme Court explained the difference between two routes: a Magistrate may **take cognizance** and proceed with the complaint himself (examination of complainant, inquiry), **or** before taking cognizance send it to the police for investigation. The second is not cognizance.

Held → A direction to investigate under s.156(3) is a **pre-cognizance** order; the police must **register an FIR** and investigate.

🔗 *How it locks into the section*

It shows how **complaint**, **investigation** and **inquiry** are separate ideas — and that the Magistrate has two doors to choose from.

⚖️ *Case story*

Mallikarjun Kodagali (dead) v. State of Karnataka

2018 · Supreme Court of India (three judges)

👨‍👩‍👧 Victim's family · 🧔 Accused (acquitted) · ⚖️ Supreme Court



After an acquittal, the victim wanted to appeal. The question was whether a victim needs **leave** of the High Court, like the State does, and whether a victim

can appeal when the offence was committed before the proviso came into force (31 December 2009).

The Court read the **proviso to s.372 CrPC** (added in 2009, now proviso to **s.413 BNSS**) with the definition of 'victim': the victim has a **statutory right of appeal** against acquittal, conviction for a lesser offence or inadequate compensation, and does **not** need leave. The right applies to acquittals ordered after 31 December 2009, even if the offence was earlier. (Deepak Gupta J. dissented on the leave point.)

> ***Held*** → A **victim may appeal as of right** without seeking leave (majority 2:1); the date of the **acquittal order**, not of the offence, decides whether the proviso applies. (That a legal heir may continue the appeal was settled later in *Khem Singh v. State of Uttarakhand*, 2025.)

> 🔗 ***How it locks into the section***
> The definition of **victim** (including guardian or legal heir) has real teeth — it decides who may appeal.

✍️ Write it in the exam like this

Q. Define and explain: (a) complaint, (b) investigation, (c) inquiry, (d) cognizable offence, (e) bail.

1. Each term: definition with clause (s.2(1)(h), (l), (k), (g), (b)); key words underlined.
2. One example for each.
3. Contrast pairs — complaint vs FIR; cognizable vs non-cognizable; bail bond vs bond; investigation vs inquiry vs trial.
4. Cases — Mohd. Yousuf (2006); Mallikarjun Kodagali (2018) for 'victim'.
5. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Bail bond vs bond?

Bail bond — with surety. Bond — personal bond, without surety (s.2(1)(d), (e)).

Q2. Is a police report a 'complaint'?

No — the definition excludes it. (But a police report in a non-cognizable case after investigation is deemed a complaint — Explanation to the definition.)

Q3. Theft is punishable up to 3 years. Is it a summons-case or a warrant-case?

A **warrant-case** — the punishment exceeds two years.

Asked in past papers 8 QUESTIONS · 2013–2020

2014 · Part A Complaint

2014 · Part A	Inquiry
2014 · Part A	Summons case
2016 · Part A	Complaint
2017 · Part A	Victim
2019 · Part A	Inquiry
2019 · Part A	Victim
2019 · Part B	Explain the difference between 'complaint' and 'First Information Report'.

★ *Memory hook*

Investigation = police. Inquiry = Magistrate, not a trial. Trial = guilt decided. Warrant-case = more than 2 years.

CHAPTER 4 · 9 PARTS

Cognizable and non-cognizable offences · FIR

Who can arrest without warrant · how the police start a case

> **Big idea**
>
> **Cognizable** = serious enough that the police may **arrest without a warrant and investigate on their own**. **Non-cognizable** = police need the **Magistrate's order** to investigate.

📖 The story of this topic

Two calls come to the same police station on one evening. First, Seema reports that a man **snatched her chain** and ran. Second, Anand says his neighbour **insulted him** in front of guests. The officer handles them very differently — because the first is **cognizable** and the second **non-cognizable**.

For Seema's case, the officer **must** record an **FIR** under **s.173 BNSS (old s.154 CrPC)**. Oral information is **reduced to writing**, read over, and signed; information can also be given **electronically**, to be signed within three days. Seema gets a **free copy**. If the victim of certain sexual offences is a woman, a **woman officer** records it; if she is temporarily or permanently disabled, it may be recorded **at her residence**, with an interpreter, and **video-recorded**. The police then

investigate without waiting for any Magistrate (**s.175**), and may arrest the snatcher **without warrant**.

For Anand's insult (non-cognizable), the officer only **enters the substance** in the station diary and **refers him to the Magistrate** (**s.174(1)**). The police **cannot investigate** without a Magistrate's order (**s.174(2)**).

What if the officer refuses to register Seema's FIR? In *Lalita Kumari* (2014), a father whose minor daughter was missing was turned away. The Constitution Bench held that **'shall' means shall**: if the information discloses a cognizable offence, registration of an FIR is mandatory. A **preliminary inquiry** was allowed only to see **whether** a cognizable offence is disclosed — in categories like matrimonial disputes, commercial offences, medical negligence, corruption and abnormal delay — within **15 days** generally (six weeks in exceptional cases) — as modified by a later 2014 order (originally 7 days). The BNSS has now written its own version into **s.173(3)**: for offences of **3 to 7 years**, with a **DSP's permission**, a preliminary enquiry within **14 days**.

If the police still refuse, Seema can send the information to the **Superintendent of Police** (**s.173(4)**), and then apply to the **Magistrate** under **s.175(3)** with an **affidavit** — exactly the path *Sakiri Vasu* (2008) pointed to. A handy tool for answers: the **First Schedule, Part II** classifies offences under other

laws — **death, life or more than 7 years**: cognizable, non-bailable, Sessions; **3 years and upwards but not more than 7 years**: cognizable, non-bailable, Magistrate first class; **below 3 years or fine**: non-cognizable, bailable, any Magistrate.

How the First Schedule (Part II) classifies offences under other laws TABLE

Punishment	Cognizable?	Bailable?	Triable by
Death, life or more than 7 years	Cognizable	Non-bailable	Court of Session
3 years and up to 7 years	Cognizable	Non-bailable	Magistrate of the first class
Less than 3 years or fine only	Non-cognizable	Bailable	Any Magistrate

Cognizable vs non-cognizable — asked in 2020 COMPARE

Cognizable

- arrest **without warrant**
- FIR under **s.173**
- police investigate **without** Magistrate's order
- usually serious — murder, rape, robbery, dowry death

VS

Non-cognizable

- arrest only **with warrant**
- entry in the station diary; informant referred to the Magistrate s.174(1)
- investigation only with **Magistrate's order** s.174(2)
- less serious — defamation, simple hurt

The FIR journey under s.173 FLOW

1. **Information**
   oral, written or **electronic** — at any police station (Zero FIR)
2. **Recorded**
   oral information reduced to writing and read over; e-information signed within 3 days
3. **Copy**
   a copy given **free of cost** to the informant or victim
   s.173(2)
4. **Women victims**
   for listed sexual offences, recorded by a **woman officer**; for a disabled victim, at her residence with an interpreter, video-recorded
5. **Investigation**
   police proceed under s.175/176; send report to the Magistrate
6. **If police refuse**
   send the substance to the **Superintendent of Police** s.173(4) ; then apply to the **Magistrate** under s.175(3)

Preliminary enquiry — the BNSS twist

s.173(3)

For a cognizable offence punishable with **3 years or more but less than 7 years**, the officer in charge

may, with the **prior permission of a DSP-rank officer**, either:

- ✓ hold a **preliminary enquiry** to see if a **prima facie case** exists — completed within **14 days**; or
- ✓ proceed with **investigation** straight away.

× Exceptions / limits

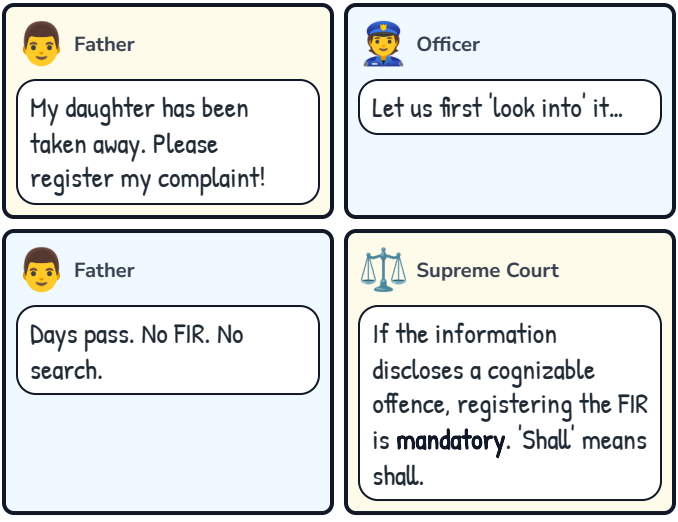
- ✗ For offences of **7 years or more**, or below 3 years, the ordinary rule of **Lalita Kumari** applies — register the FIR if the information discloses a cognizable offence.

⚖️ Case story

Lalita Kumari v. Government of Uttar Pradesh

2014 · Supreme Court of India (Constitution Bench)

👦 Father of a missing minor girl · 👮 Police station officer · ⚖️ Supreme Court



A minor girl, Lalita Kumari, was missing. Her father went to the police, but no FIR was registered and no action was taken. He moved the Supreme Court under Art. 32. Conflicting judgments existed on whether police could first verify information before registering an FIR.

The Constitution Bench held that **s.154 CrPC** (now s.173 BNSS) uses the word '**shall**'; the officer has **no discretion** if the information discloses a cognizable offence. A **preliminary inquiry** is permitted only to check **whether** a cognizable offence is disclosed — in categories such as matrimonial/family disputes, commercial offences, medical negligence, corruption, and cases of abnormal delay — and must be finished within **15 days** generally (six weeks in exceptional cases, for recorded reasons — the original 7 days was enlarged by the Court in March 2014). Officers who do not register FIRs face action.

Held → **Registration of an FIR is mandatory** where the information discloses a cognizable offence; a limited preliminary inquiry is allowed only in specified categories.

🔗 How it locks into the section

Learn **s.173** through this case — and note that the BNSS has now written a **statutory preliminary enquiry** (3–7 years, 14 days, DSP's permission) into s.173(3).

🧭 In real life

An informant e-mails the police at 11 p.m. that his scooter was stolen in another city. Under the BNSS, the station records it as an **e-FIR / Zero FIR**, he signs it within **3 days**, gets a **free copy**, and the FIR is transferred to the station where the theft happened.

✍️ Write it in the exam like this

Q. Distinguish between cognizable and non-cognizable offences. Explain the law relating to FIR.

1. Definitions — s.2(1)(g), (o); First Schedule classification table.
2. FIR — s.173: who, how, e-FIR, Zero FIR, free copy, women victims.
3. Non-cognizable — s.174.
4. Refusal to register — s.173(4), s.175(3); preliminary enquiry s.173(3).
5. Cases — Lalita Kumari (2014); Sakiri Vasu (2008).
6. Evidentiary value of FIR (corroboration/contradiction, not substantive). Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Who decides whether an offence is cognizable?

The **First Schedule** of the BNSS (for BNS offences) and, for other laws, the law itself or Part II of the First Schedule.

Q2. What can an informant do if police refuse to register an FIR?

Send the information to the SP (s.173(4)); then apply to the Magistrate under s.175(3) (Sakiri Vasu).

Q3. Can police investigate a non-cognizable case?

Only with the order of a Magistrate having power to try it — s.174(2).

Asked in past papers 14 QUESTIONS · 2013–2020

2013 · Part A	Cognizable offence
2013 · Part B	Define arrest. How a person is arrested in non-cognizable offence?
2013 · Part B	Explain the Law relating to FIR.
2015 · Part B	Write a brief note on First Information Report.
2016 · Part A	Cognizable offence
2016 · Part C	A person has committed three offences within a year, one is a compoundable offence and the other two are non-cognizable offences. Which court has the power to punish, what will be the punishment?
2017 · Part A	Arrest without warrant
2017 · Part A	Non-Cognizable offence
2017 · Part B	Write a brief note on FIR.
2018 · Part A	Cognizable offence.
2018 · Part C	After receiving the First Information Report (FIR), the station house officer decided not to investigate the case on the ground that the case is not of a serious nature. What is the remedy available to the person aggriev
2018 · Part C	If a Magistrate who is not empowered, erroneously and in good faith, orders the police to investigate into a non- cognizable case. What would be the consequences of this illegality on the validity of the proceedings?
2019 · Part B	Explain the difference between 'complaint' and 'First Information Report'.
2020 · Part B	Differentiate between cognizable and non-cognizable offences with suitable examples.

★ *Memory hook*

Cognizable = Cop can act alone. Non-cognizable = Needs a Court's nod. FIR: 'shall' register (Lalita Kumari).

CHAPTER 5 · 10 PARTS

Bailable and non-bailable offences · bail

Bail is the rule, jail the exception

> **Big idea**
>
> **Bail** balances two things: the accused's **liberty** (he is presumed innocent) and society's need that he **appears for trial** and does not tamper with evidence.

📖 The story of this topic

Raju is arrested on suspicion of stealing a motorbike. He has not been tried; the law **presumes him innocent**. Yet if he is freed, will he run away, threaten witnesses, or steal again? **Bail** is the law's answer to this tension: release from custody on a **promise** (bond) — sometimes with **sureties** — that he will appear whenever required.

The first question is always: **bailable or non-bailable?** If the offence is **bailable**, bail is Raju's right. The police officer or court **must** release him on bail (**s.478**). And if he is too poor to arrange a surety **within a week** of arrest, he is **presumed indigent** and released on a **personal bond**. This rule grew from *Moti Ram* (1978): a poor mason got bail from the Supreme Court, but the CJM demanded a ₹10,000 surety and rejected his brother because his property

was in another district — the Supreme Court said such bail is **no bail** for the poor.

If the offence is **non-bailable**, bail is the court's discretion (**s.480**). The court weighs the **gravity** of the accusation, the **evidence**, the risk of **fleeing**, of **tampering** with evidence or **threatening** witnesses, and the accused's **antecedents**. There are special restrictions for offences punishable with **death or life imprisonment**, and leniency for **women, children, the sick or infirm**. The **High Court and Sessions Court** have wider powers (**s.483**). Justice Krishna Iyer's line in *Balchand* (1977) is the heart of every bail answer: the basic rule is bail, not jail — unless there is a risk of fleeing, thwarting justice or repeating offences.

What if Raju **fears** arrest before it happens? He can apply for **anticipatory bail** to the **High Court or Sessions Court** (**s.482**). In *Gurbaksh Singh Sibbia* (1980), the Constitution Bench refused to cut this power down with rigid conditions; and in *Sushila Aggarwal* (2020) a five-judge bench held that it **need not ordinarily be time-limited**.

Two safety valves protect against endless custody. If the police do not file a charge-sheet within **60 days** (or **90 days** for offences punishable with death, life or ten years or more), the accused gets **default bail** as of right if he applies (**s.187(3)**). And an **undertrial** who has spent **half** the maximum sentence in custody —

one-third for a **first-time** offender — must be released by the court **on bail** (a first-time offender **on bond**) (**s.479**); this does not apply to offences punishable with death or life, or where cases for more than one offence are pending. Add *Arnesh Kumar* (2014) — no automatic arrest for offences up to **7 years** — and *Satender Kumar Antil* (2022), which called for a separate **Bail Act**.

Bailable vs non-bailable — asked in 2014

COMPARE

Bailable

- bail is a **right** of the accused
- police officer or court **must** release on bail s.478
- poor accused unable to give surety within a week — presumed indigent; release on **personal bond**

VS

Non-bailable

- bail is the court's **discretion** s.480
- restrictions for offences punishable with **death or life**
- special leniency for a woman, a child, sick or infirm persons
- High Court / Sessions Court have wider powers s.483

Kinds of bail TABLE

Kind	When	Section
Regular bail (bailable)	after arrest, offence is bailable — as of right	s.478
Regular bail (non-bailable)	after arrest — discretion of the court	s.480 · s.483

Kind	When	Section
Anticipatory bail	**before arrest**, apprehending arrest for a non-bailable offence — High Court or Sessions Court only	s.482
Default ('statutory') bail	charge-sheet not filed within **60 / 90 days** — indefeasible right if he applies	s.187(3)
Undertrial release	detained for **half** the maximum sentence (or **one-third** for a first-time offender) — released on bail (first-time offender on bond)	s.479
Interim bail	temporary, pending decision on the main application	court's discretion

Factors for granting bail in non-bailable offences

s.480 · case law

- ✓ **Nature and gravity** of the accusation and the punishment.
- ✓ **Prima facie** evidence against the accused.
- ✓ Danger of **absconding** or fleeing from justice.
- ✓ Likelihood of **tampering** with evidence or **threatening** witnesses.
- ✓ **Antecedents** — repeat offender?
- ✓ Period already spent in custody; delay in trial.

× Exceptions / limits

✗ s.479 (undertrial release) does **not** apply to offences punishable with **death or life imprisonment**, or where investigation/trial is pending in **more than one offence**.

✗ Special laws (NDPS s.37, UAPA s.43D(5), PMLA s.45) add **stricter twin conditions**.

⚖️ Case story

State of Rajasthan v. Balchand

1977 · Supreme Court of India (Krishna Iyer J.)

🧔 Balchand (accused) 🏛️ State of Rajasthan ⚖️ Krishna Iyer J.

🏛️ **State**

The High Court acquitted him, but we have appealed. Keep him in jail!

🧔 **Balchand**

I have surrendered as ordered. I won't run away. Please release me on bail.

⚖️ **Krishna Iyer J.**

The basic rule is **bail, not jail** — unless he may flee, tamper with justice or repeat the offence.

The High Court had **acquitted** Balchand. The State appealed to the Supreme Court. Balchand surrendered and asked to be released on bail while the appeal was pending.

Justice Krishna Iyer used the famous words: the basic rule may perhaps be tersely put as bail, not jail, except where there are circumstances suggestive of fleeing from justice or thwarting the course of justice or creating other troubles such as repeating offences or intimidating witnesses.

> ***Held*** → Bail was granted — the rule is **bail**; refusal is the exception, needing real reasons.

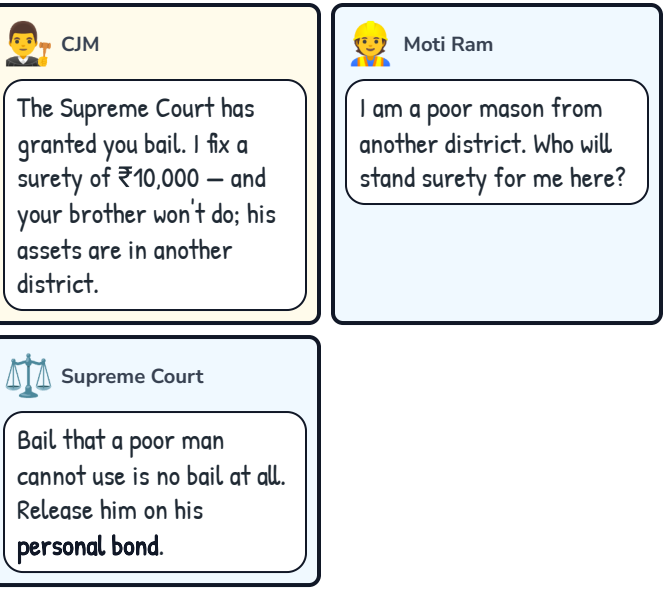
> 🔗 ***How it locks into the section***
> Quote this line in **every** bail answer, then list the factors (gravity, flight, tampering, repetition).

⚖️ ***Case story***

Moti Ram v. State of Madhya Pradesh

1978 · Supreme Court of India

👷 Moti Ram (a poor mason) 👨‍⚖️ Chief Judicial Magistrate ⚖️ Supreme Court



The Supreme Court granted Moti Ram, a poor mason, bail **to the satisfaction of the CJM**. The CJM fixed a **surety of ₹10,000** and refused his brother as surety because the brother's assets were in **another district**. Unable to meet it, he stayed in jail.

The Supreme Court (Krishna Iyer J.) said that demanding sureties beyond a person's means denies liberty to the poor; courts may release the accused on a **personal bond** without sureties, and must not insist on local sureties.

> ***Held*** → Bail conditions must be **reasonable**; the accused can be released on **personal bond**, and sureties cannot be refused because they come from another district.

🔗 How it locks into the section

Now written into the law: a person unable to furnish bail **within a week** of arrest is presumed indigent and may be released on personal bond (Explanation to s.478(1)).

⚖️ Case story

Gurbaksh Singh Sibbia v. State of Punjab

1980 · Supreme Court of India (Constitution Bench)

🧑 Gurbaksh Singh Sibbia (a former Punjab minister)

🏛️ Punjab & Haryana High Court ⚖️ Supreme Court

🧑 Sibbia

I fear arrest on political accusations of corruption. I ask for anticipatory bail.

🏛️ High Court

Only in exceptional cases — and with these eight strict conditions.

⚖️ Supreme Court

Do not shrink a wide power with rigid rules. Discretion must stay wide — and fair.

Corruption accusations were made against Gurbaksh Singh Sibbia, then a minister in Punjab. He sought **anticipatory bail** under s.438 CrPC (now **s.482 BNSS**). The High Court laid down rigid conditions — e.g. that it should be given only in exceptional cases.

The Constitution Bench (Chandrachud C.J.) held that s.438 confers a **wide discretion**, which should not be cut down by judge-made restrictions. The applicant

must show **reasonable grounds** for believing he may be arrested; a **blanket** order covering any future offence should not be passed; conditions may be imposed.

> ***Held*** → Anticipatory bail is a valuable safeguard of **personal liberty** under Art. 21; the High Court's restrictive rules were set aside.

> 🔗 ***How it locks into the section***
> **Sushila Aggarwal v. State (NCT of Delhi), 2020** (five judges) later confirmed: anticipatory bail need **not ordinarily be limited in time** and can last till the end of trial.

📌 ***Also remember***

Satender Kumar Antil v. CBI (2022): the Supreme Court classified offences into categories, gave bail guidelines, stressed compliance with **s.41/41A CrPC** (now s.35 BNSS) and recommended a separate **Bail Act**. **Arnesh Kumar v. State of Bihar (2014)**: no automatic arrest for offences punishable up to **7 years** — the police must justify arrest with a checklist; issue a **notice of appearance** instead.

✍️ Write it in the exam like this

Q. Explain the provisions relating to bail under the BNSS. Distinguish bailable and non-bailable offences.

1. Meaning — s.2(1)(b), bond and bail bond; Art. 21 and presumption of innocence.
2. Bailable — s.478, right; indigent presumption; Moti Ram.
3. Non-bailable — s.480 discretion; factors; s.483.
4. Anticipatory bail — s.482; Gurbaksh Singh Sibbia; Sushila Aggarwal.
5. Default bail s.187(3); undertrial release s.479; cancellation.
6. Balchand quote; Arnesh Kumar; Satender Kumar Antil. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Who can grant anticipatory bail?

Only the **High Court or Court of Session** — s.482 BNSS.

Q2. What is default bail?

Bail as of right if the charge-sheet is not filed within 60 days (or 90 days for offences punishable with death, life or 10+ years) — s.187(3).

Q3. A person is on bail and commits another offence. Can bail be cancelled?

Yes — the court that granted bail (or HC/Sessions Court) may cancel it and direct arrest (s.480(5), s.483(3)); repeating offences is a classic ground (Balchand).

Asked in past papers 10 QUESTIONS · 2013–2020

2013 · Part A	Bail
2013 · Part C	Mr. A was released on bail. While he is on bail, he again committed an offence. State whether bail is going to be continued or not.
2014 · Part A	Non-bailable offence
2014 · Part B	Differentiate between bailable and non-bailable offences.
2014 · Part C	A person was arrested presuming that he is a terrorist. Whether he can be released on bail. Discuss.
2014 · Part C	Laxmi was an under trial prisoner for last 6 months and at last court granted bail, but she couldnot fulfill the conditions. What is the remedy for her? Suggest.
2015 · Part A	Non-bailable offence
2015 · Part C	A person was arrested on the presumption of being involved in terrorist activities. Later the court came to know that he was not involved and informs him to apply for bail and pay the bond amount. Due to his poverty he c
2018 · Part A	Anticipatory Bail.
2019 · Part B	Discuss the provision as to bail and bonds.

★ *Memory hook*

Bail, not jail. Bailable → **right**. Non-bailable → **discretion**. Before arrest → **anticipatory** (HC / Sessions). No charge-sheet in 60/90 → **default bail.**

CHAPTER 6 · 8 PARTS

Investigation, inquiry and trial

Three stages · who does what · charge-sheet

> **Big idea**
>
> **Police investigate** (collect evidence) → **Magistrate inquires** (checks if a case exists) → **court tries** (decides guilt). Three stages, three actors.

📖 The story of this topic

A body is found near a lake. Who does what next? Three different actors, three different stages — and examiners love asking you to tell them apart.

Stage one: investigation, by the police. In *H.N. Rishbud* (1955), the Supreme Court described its steps: (1) **proceed to the spot**; (2) **ascertain the facts** and circumstances; (3) **discover and arrest** the suspected offender; (4) **collect evidence** — examine persons (**s.180**), search places and seize things (**s.185**); and (5) **form an opinion** whether there is a case to place before a Magistrate, and **submit a police report** (**s.193**). In Rishbud's own case, much of a corruption investigation was done by officers below the required rank. The investigation was **illegal** — but the Court said a defective investigation **does not automatically spoil the trial**; it matters only if it caused a **miscarriage of justice**.

The police report — popularly the **charge-sheet** (or a **closure report** if no case is found) — goes to the Magistrate. Investigation must finish **without unnecessary delay**; for listed sexual offences against women and children, within **two months**. The informant or victim must be told of progress within **90 days**. Even after a report, police may carry out **further investigation**; if this happens **during the trial**, it needs the court's **permission** and must ordinarily be completed within **90 days** (**s.193(9)**).

Stage two: inquiry, by a Magistrate. An inquiry is **every inquiry other than a trial** conducted by a Magistrate or court — for example, when a Magistrate examines a complainant and witnesses to decide whether to issue process, or decides whether to commit a case to the Sessions Court. Note that a Magistrate **never investigates** — but he can **order** investigation. In *Sakiri Vasu* (2008), a father unhappy with the probe into his Army-officer son's death went to the High Court and then the Supreme Court; the Court said his remedy lay first with the police hierarchy and the **Magistrate under s.156(3) CrPC (now s.175(3))**, who can order an FIR, direct a proper investigation and **monitor** it.

Stage three: trial, by a court. The trial is where the **charge** is framed (or accusation stated), evidence is led, the accused is heard, and the court decides **guilt**

or innocence — ending in **acquittal or conviction**. 'Trial' is **not defined** in the Code, but its end-point makes it easy to remember. Memory line: Police investigate, Magistrates inquire, courts try

Investigation vs inquiry vs trial TABLE

Point	Investigation	Inquiry	Trial
By	**police** (or a person authorised by Magistrate, not a Magistrate)	**Magistrate or court**	**Magistrate or Sessions Court**
Purpose	collect evidence	find whether to proceed — any proceeding other than trial	decide guilt or innocence
Nature	administrative	judicial / non-judicial	judicial
Ends in	police report (charge-sheet / closure report)	order, e.g. dismissal of complaint, committal	acquittal or conviction
Section	s.2(1)(l)	s.2(1)	not defined

Steps of investigation (H.N. Rishbud) FLOW

1. **Proceed to the spot**
   visit the scene
2. **Ascertain facts**
   and circumstances of the case
3. **Discover & arrest**
   find and arrest the suspected offender
4. **Collect evidence**
   examine persons
   s.180
   , search and seize
   s.185
   , record statements
5. **Form an opinion**
   is there a case for trial? Submit police report to Magistrate
   s.193

⚖️ Case story

H.N. Rishbud v. State of Delhi

1955 · Supreme Court of India

- 🧑‍💼 H.N. Rishbud (a government official)
- 👮 Investigating officer (below the required rank)
- ⚖️ Supreme Court

Rishbud

Under the anti-corruption law, only a DSP or above could investigate. An inspector did most of it!

Supreme Court

Right — the investigation was illegal. The court should have ordered re-investigation.

Supreme Court

But an illegal investigation does not automatically void a trial — only if it caused a miscarriage of justice.

H.N. Rishbud was charged under the Prevention of Corruption Act, which required investigation by an officer of at least the rank of **Deputy Superintendent of Police** unless a Magistrate permitted otherwise. Much of the investigation was done by lower-rank officers.

The Supreme Court described **what investigation consists of** (the five steps above) and held that the requirement was mandatory, so the investigation was illegal; if this is noticed early, the court should order **re-investigation**. But a defect in investigation does **not** by itself vitiate the cognizance or the trial — it matters only if it has caused **prejudice / miscarriage of justice**.

> ***Held*** → Investigation in breach of mandatory provisions is illegal, but the resulting trial is void only if a **miscarriage of justice** is shown.

🔗 How it locks into the section

This case **defines investigation** in practice — quote the five steps.

⚖️ Case story

Sakiri Vasu v. State of Uttar Pradesh

2008 · Supreme Court of India

👨 Sakiri Vasu (father of an Army officer found dead)

🪖 Army inquiry ⚖️ Supreme Court

👨 **Father**

My son, a Major, was found dead near a railway track. Police and the Army say accident/suicide. I want a CBI probe.

⚖️ **Supreme Court**

If you are not satisfied with the police, go to the **Magistrate** under s.156(3).

⚖️ **Supreme Court**

He can order an FIR, a proper investigation — and **monitor** it.

A father, unhappy with the investigation into his son's death, filed a writ petition in the Allahabad High Court seeking a CBI inquiry; when it was dismissed, he appealed to the Supreme Court.

The Court held that the remedy lies first with the **police hierarchy** (SP) and then the **Magistrate under s.156(3) CrPC** (now **s.175(3) BNSS**). The Magistrate has wide powers — to order registration of an FIR, a

proper investigation, and to **monitor** it. Writ petitions should not be the first stop.

> ***Held*** → Magistrates have power to direct and **monitor** investigation; High Courts should not ordinarily entertain such writs when the alternative remedy exists.

> 🔗 ***How it locks into the section***
> BNSS s.175(3) now requires an **application supported by an affidavit**, and that the applicant first approached the SP (s.173(4)).

Police report / charge-sheet

s.193

- ✓ Investigation must be completed **without unnecessary delay**; in listed sexual offences against women and children, within **two months** from recording of information s.193(2).
- ✓ Report to the Magistrate in prescribed form: names, nature of information, persons who appear acquainted, whether offence committed, whether accused arrested/released s.193(3).
- ✓ Police must inform the **victim / informant** of progress within **90 days** — including by electronic means.

✓ **Further investigation** can be done even after the report s.193(9); further investigation **during the trial** needs the trial court's permission and must be completed within **90 days**, extendable with the court's permission (proviso).

✍ Write it in the exam like this

Q. Distinguish between investigation, inquiry and trial.

1. Introduction — three stages of a criminal case.
2. Investigation — s.2(1)(l); steps (H.N. Rishbud); police report s.193; further investigation.
3. Inquiry — definition; examples; Magistrate's power to order investigation (s.175(3), Sakiri Vasu).
4. Trial — not defined; stages; ends in acquittal/conviction.
5. Comparison table (by whom, purpose, nature, ends in).
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Who conducts an inquiry?

A Magistrate or court — never the police.

Q2. Does a defective investigation make the trial void?

Not by itself — only if it caused a miscarriage of justice (H.N. Rishbud).

Q3. What is a closure report?

A police report under s.193 saying no offence is made out or no evidence; the Magistrate may accept it, order further investigation, or take cognizance — after notice to the informant.

Asked in past papers 10 QUESTIONS · 2013–2020

2014 · Part A	Charge sheet
2014 · Part A	Inquiry
2014 · Part B	Explain the law relating to trial under Cr.P.C.
2015 · Part A	Charge Sheet
2017 · Part A	Trial
2018 · Part C	After receiving the First Information Report (FIR), the station house officer decided not to investigate the case on the ground that the case is not of a serious nature. What is the remedy available to the person aggriev
2018 · Part C	If a Magistrate who is not empowered, erroneously and in good faith, orders the police to investigate into a non- cognizable case. What would be the consequences of this illegality on the validity of the proceedings?
2019 · Part A	Inquest
2019 · Part A	Inquiry
2020 · Part A	Charge Sheet

★ *Memory hook*

Police → Investigate. Magistrate → Inquire. Court → Try. Rishbud's five steps: **Spot, Facts, Arrest, Evidence, Opinion.**

CHAPTER 7 · 8 PARTS

Classes of criminal courts and their powers

s.6 · ss.8–14 · sentencing powers ss.22–23

> **Big idea**
>
> Courts are arranged like a **ladder**: the more serious the offence, the higher the court. Each step has a **ceiling** on the sentence it can pass.

📖 The story of this topic

Picture the criminal courts as a **ladder**. At the bottom are **Judicial Magistrates of the second class**, then **first class**, then the **Chief Judicial Magistrate**; above them the **Court of Session**; and above that the **High Court** and **Supreme Court**. Beside the ladder stand **Executive Magistrates** — District Magistrate, Sub-Divisional Magistrate — who keep **public order** but do not try ordinary offences. **s.6 BNSS** lists the classes: Courts of Session, Judicial Magistrates of the first and second class, and Executive Magistrates.

Each step has a ceiling on the sentence it can give (**ss.22–23**). The **High Court** and the **Sessions Judge / Additional Sessions Judge** may pass **any sentence authorised by law** — but a **death sentence** by a Sessions Court **cannot be executed until the High**

Court confirms it (**ss.407–410**, old ss.366–369). The **CJM** may pass any sentence **except death, life, or imprisonment above seven years**. A **Magistrate of the first class**: up to **3 years**, fine up to **₹50,000**, or **community service**. A **Magistrate of the second class**: up to **1 year**, fine up to **₹10,000**, or community service. Memory line: 7 – 3 – 1, and 50 – 10

Why the death-sentence lock? Because in *Bachan Singh* (1980), the Constitution Bench upheld the death penalty but made **life imprisonment the rule and death the exception**, only in the '**rarest of rare**' cases, after weighing **aggravating and mitigating** circumstances, with **special reasons** recorded (now **s.393(3)**). High Court confirmation, signed by at least **two judges** where the Court has two or more, is a second safety check.

Who sets up these courts? Every State is, or is divided into, **sessions divisions** (**s.7**; the State Government may alter them after consulting the High Court); the **State Government establishes a Court of Session** for each division and the **High Court appoints** Sessions Judges and Additional Sessions Judges (**s.8**) and designates the **CJM** (**s.10**). **Special Judicial Magistrates** may be conferred powers for particular cases or areas (**s.11**).

Try the old exam problem (2014): 'An in-charge Sessions Judge awarded a death sentence. Can it be

executed?' Answer: **No** — not unless the **High Court confirms** it; and you also check whether the judge exercising the power was competent to pass that sentence.

Classes of criminal courts MAP

Criminal courts — s.6 BNSS

Above s.6

- **Supreme Court**
- **High Courts**
- courts under other laws (special courts)

Court of Session

- **Sessions Judge** · **Additional Sessions Judge**
- one for each sessions division s.8

Judicial Magistrates

- **Chief Judicial Magistrate** (and Additional CJM) s.10
- Judicial Magistrate of the **first class**
- Judicial Magistrate of the **second class**
- Special Judicial Magistrates s.11

Executive Magistrates

- **District Magistrate**, Sub-Divisional Magistrate, others s.14
- keep public order — not trials of offences

Sentencing powers — memorise this table

TABLE

Court	Imprisonment	Fine	Other
High Court	any sentence authorised by law	any	—
Sessions Judge / Addl. Sessions Judge	any sentence authorised by law	any	**death** needs **High Court confirmation**
Chief Judicial Magistrate	any, except **death, life or more than 7 years**	any	—
Judicial Magistrate, first class	up to **3 years**	up to **₹50,000**	or **community service**
Judicial Magistrate, second class	up to **1 year**	up to **₹10,000**	or **community service**

Death sentence — the safety lock

ss.407–410 BNSS (old ss.366–369 CrPC)

When a Court of Session passes a sentence of death, the proceedings are **submitted to the High Court**, and the sentence **shall not be executed unless confirmed** by the High Court.

- ✓ The High Court may confirm, pass another sentence, annul the conviction, or order a new trial / further inquiry.
- ✓ Confirmation is signed by **at least two judges** where the High Court has two or more judges.

⚖️ *Case story*

Bachan Singh v. State of Punjab

1980 · Supreme Court of India (Constitution Bench, 4:1)

🧔 Bachan Singh (convicted of murder) ⚖️ Supreme Court

🧔 **Bachan Singh**

The death penalty itself violates Articles 14, 19 and 21!

⚖️ **Majority**

It is constitutional — but only in the **rarest of rare** cases, when life imprisonment is unquestionably foreclosed.

⚖️ **Majority**

Weigh **aggravating** and **mitigating** circumstances — of the crime and the criminal.

⚖️ **Bhagwati J. (dissent)**

I would strike it down.

Bachan Singh was sentenced to death for murder. He challenged the constitutional validity of the death penalty under s.302 IPC and the sentencing procedure in **s.354(3) CrPC** (which requires **special reasons** for a death sentence).

The Constitution Bench upheld the death penalty but laid down that life imprisonment is the **rule** and death the **exception**, to be imposed only in the '**rarest of rare**' cases, after balancing aggravating and mitigating circumstances.

Held → Death penalty is **constitutional**; to be awarded only in the **rarest of rare** cases with special reasons recorded.

🔗 How it locks into the section

Explains why the Code adds layers of safety — **special reasons** in judgment (now s.393(3) BNSS) and **High Court confirmation** (s.407).

🧭 In real life

Exam problem (2014): 'An in-charge Sessions Judge awarded death sentence. Can it be executed?' — **No**, not until the **High Court confirms** it under s.407 (old s.366); and the judge must have been a Sessions/Additional Sessions Judge competent to pass it.

✍️ Write it in the exam like this

Q. Explain the classes of criminal courts and their sentencing powers under the BNSS.

1. Introduction — hierarchy; separation of judiciary (Art. 50).
2. Classes — s.6; constitution — ss.8–11, 14.
3. Sentencing powers — ss.22–23 table (7–3–1, 50k–10k, community service).
4. Death sentence — confirmation ss.407–410; Bachan Singh; special reasons s.393(3).
5. Executive Magistrates — role.
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Maximum sentence a CJM can pass?

Any sentence authorised by law except death, life imprisonment or imprisonment for more than 7 years.

Q2. Who appoints Sessions Judges?

The **High Court** (s.8); the State Government establishes a Court of Session for each sessions division (s.7–8).

Q3. Do Executive Magistrates try offences?

Ordinarily no — they handle maintenance of public order (e.g. security proceedings, unlawful assemblies, public nuisance).

Asked in past papers 11 QUESTIONS · 2013–2020

2014 · Part A Sessions Judge

2014 · Part C	An incharge session Judge awarded death sentence. Whether it can be executed or not.
2015 · Part A	Chief Judicial Magistrate
2015 · Part A	Death Sentence
2015 · Part C	A person was arrested on the presumption of being involved in terrorist activities. Later the court came to know that he was not involved and informs him to apply for bail and pay the bond amount. Due to his poverty he c
2015 · Part C	Two persons entered into a gold shop, took away the box consisting of twelve gold chains. After going home they came to know that the box was empty. Both were arrested. Whether they had committed any offence, which court
2015 · Part C	X, within the period of 1 year committed theft trespass, cheating. Which court has jurisdiction to try the case and what will be the punishment?
2016 · Part A	Death sentence
2016 · Part A	Sessions court
2016 · Part C	A person has committed three offences within a year, one is a compoundable offence and the other two are non-cognizable offences. Which court has the power to punish, what will be the punishment?
2020 · Part C	A judge was involved in a corruption case, it was confirmed by the preliminary enquiry and he was arrested by the police. Whether police have powers to arrest the judge. If not how to arrest the judge? Which court is hav

★ *Memory hook*

HC & Sessions: anything (death → HC confirms). CJM: up to 7. First class: 3 yrs / ₹50k. Second class: 1 yr / ₹10k. '7-3-1, 50-10'.

CHAPTER 8 · 8 PARTS

Directorate of Prosecution and public prosecutors

ss.18–20 · s.360 withdrawal · the prosecutor's duty of fairness

> **Big idea**
>
> A **public prosecutor** represents the **State**, not the victim and not the police. His goal is **justice**, not a conviction at any cost.

📖 The story of this topic

In a murder trial, who argues against the accused? Not the dead man's family, and not the police — it is the **State**, represented by the **Public Prosecutor**. A crime is treated as a wrong against **society**, so the State prosecutes. But the PP is not a hired gun. He is an officer of the court whose duty is to place **all the facts fairly** before the judge — even facts that help the accused.

In *Shiv Kumar v. Hukam Chand* (1999), a complainant wanted his own private lawyer to run the prosecution in a Sessions trial. The Supreme Court refused: in a Sessions Court only the **PP conducts** the case; a private lawyer may only **assist under the PP's directions** (s.301 CrPC, now **s.338**). The Court said a PP is not expected to show a thirst to reach the case in the conviction of the accused somehow or the other

irrespective of the true facts — a prosecution must not become a **persecution**. In a Magistrate's court, the Magistrate may permit a private person to **conduct** the prosecution (**s.339**). And under the **proviso to s.18(8)**, the court may permit the **victim** to engage an advocate to **assist** the prosecution.

Who are the prosecutors? For the **High Court**, the Central or State Government appoints a PP **after consulting the High Court** (**s.18(1)**). For each **district**, the State appoints PPs from a **panel** prepared by the **District Magistrate in consultation with the Sessions Judge**. Both need **7 years** as an advocate (**s.18(7)**). A **Special Public Prosecutor** for a particular case needs **10 years** (**s.18(8)**). **Assistant Public Prosecutors** work in **Magistrates' courts** (**s.19**). Above them, the State may establish a **Directorate of Prosecution** (**s.20**, old s.25A) headed by a **Director** — an advocate of **15 years** or a **Sessions Judge** — with Deputy and Assistant Directors and district units that monitor cases and advise on appeals.

The most delicate power is **withdrawal from prosecution** (**s.360**, old s.321). The PP in charge may, **with the court's consent**, withdraw at any time **before judgment** — before charge the accused is **discharged**, after charge **acquitted**. In *Sheonandan Paswan* (1987), a PP withdrew a case against a former Chief Minister; the Constitution Bench (3:2) upheld it,

holding that the decision is the **PP's own, made in good faith**, and the court's role is **supervisory**. The BNSS adds a new safeguard: the victim must be heard before the court allows withdrawal.

Who's who in prosecution TABLE

Office	Appointed by / for	Qualification	Section
Public Prosecutor (High Court)	Central / State Government, **after consultation with the High Court**	advocate for **7 years** s.18(7)	s.18(1)
Public Prosecutor (District)	State Government from a **panel** prepared by the **District Magistrate in consultation with the Sessions Judge**	advocate for **7 years**	s.18(3)–(7)
Special Public Prosecutor	Central / State Government for a case or class of cases	advocate for **10 years**	s.18(8)
Assistant Public Prosecutor	State Government — for **Magistrates' courts**	—	s.19
Directorate of Prosecution	State Government — a **Director of Prosecution**, Deputy and Assistant Directors, district units	Director: advocate for **15 years** or a **Sessions Judge**	s.20

Directorate of Prosecution — what it does

🏛️

Heads prosecution

Director works under the **administrative control** of the State Home Department

📊

Monitors cases

serious cases tracked by Director / Deputy Directors by punishment range

⏱️

Expedites

speedy disposal; examines police reports

📝

Advises appeals

opinion on filing appeals

Victim's advocate and withdrawal from prosecution

s.18(8) proviso · s.360

- ✓ The court **may permit the victim** to engage an advocate of choice to **assist the prosecution** s.18(8) proviso.
- ✓ In Sessions trials the private advocate acts **under the directions** of the Public Prosecutor; in Magistrates' courts, a private person may be permitted to **conduct** the prosecution s.339.
- ✓ **Withdrawal** s.360: the PP / APP in charge may, **with the consent of the court**, withdraw from prosecution at any time **before judgment** — before charge → discharge; after charge → acquittal.

✓ **New in BNSS**: no court shall allow withdrawal **without giving the victim an opportunity of being heard**.

⚖️ *Case story*

Shiv Kumar v. Hukam Chand

1999 · Supreme Court of India

🧑 Complainant's private lawyer 👨‍⚖️ Public Prosecutor ⚖️ Supreme Court

🧑 **Complainant**

I want my own lawyer to run the whole prosecution in the Sessions Court!

⚖️ **Supreme Court**

No. In a Sessions trial, only the **Public Prosecutor** conducts the case.

⚖️ **Supreme Court**

A prosecution ought not to be a persecution. The PP must be fair — even to the accused.

In a Sessions case, the complainant wanted his private counsel to conduct the prosecution. The question was the role of a private lawyer under **s.301 CrPC** (now s.338 BNSS).

The Court held that in Sessions trials the prosecution must be **conducted by the Public Prosecutor**; a private counsel can only **assist** under the PP's direction. It explained why: a Public Prosecutor is an

officer of the court who must be **fair and impartial**; a private lawyer may be driven by vengeance.

> ***Held*** → A private counsel cannot be allowed to **conduct** the prosecution in a Sessions Court; he may only assist the PP.

🔗 How it locks into the section

The core idea of the **PP's role** — a Public Prosecutor is not expected to show a thirst to reach the case in the conviction of the accused somehow or the other irrespective of the true facts.

⚖️ Case story

Sheonandan Paswan v. State of Bihar

1987 · Supreme Court of India (Constitution Bench, 3:2)

🏛️ A former Chief Minister (accused) · 👨‍⚖️ Public Prosecutor · 🧑 Sheonandan Paswan (objector)

👨‍⚖️ **PP**

I wish to withdraw from this forgery/corruption prosecution. The evidence is weak.

🧑 **Paswan**

This is a political favour! The court must not allow it.

⚖️ **Majority**

The PP's decision was in good faith on the material; the court's consent was properly given.

A criminal case relating to an alleged co-operative bank fraud was pending against a former Chief Minister of Bihar. The Public Prosecutor applied to withdraw from prosecution under **s.321 CrPC** (now s.360 BNSS); the Magistrate consented. A citizen challenged it.

The majority held that the decision to withdraw is the **Public Prosecutor's** — he must apply his **independent mind** in good faith, in the interest of justice; the court performs a **supervisory** function and gives consent only after checking that the withdrawal is not improper.

> ***Held*** → Withdrawal was upheld; the court's role under s.321 is to see that the **PP's discretion** was exercised properly, not to re-try the case.

> 🔗 ***How it locks into the section***
> BNSS adds a safeguard the CrPC lacked — the **victim must be heard** before withdrawal is allowed.

✍️ Write it in the exam like this

Q. Explain the role, appointment and powers of Public Prosecutors under the BNSS.

1. Introduction — crime as wrong against society; PP as officer of the court.
2. Appointment — s.18 (HC, district, SPP, qualifications), s.19 APP, s.20 Directorate.
3. Conduct of prosecution — s.338, s.339, victim's advocate (s.18(8) proviso).
4. Withdrawal — s.360; victim hearing; Sheonandan Paswan.
5. Duty of fairness — Shiv Kumar v. Hukam Chand.
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Minimum practice for a Special Public Prosecutor?

10 years as an advocate — s.18(8).

Q2. Who appoints Assistant Public Prosecutors?

The State Government, for Magistrates' courts — s.19.

Q3. What is new about withdrawal under the BNSS?

The court must give the victim an opportunity of being heard before permitting withdrawal (s.360 proviso).

Asked in past papers 1 QUESTIONS · 2013–2020

2019 · Part A Public Prosecuters

★ *Memory hook*

PP: 7 yrs · SPP: 10 yrs · Director: 15 yrs. PP = officer of justice, **not a persecutor**.

CHAPTER 9 · 9 PARTS

Defence lawyer, legal aid and correctional methods

Right to counsel · free legal aid · prisons, parole, probation

> **Big idea**
>
> A trial without a **defence lawyer** is not a fair trial. And punishment today aims at **reform** — prisons are meant to be **correctional homes**, not dungeons.

📖 The story of this topic

Can there be a fair trial if the accused cannot afford a lawyer and does not even know the law? The Constitution says no. **Art. 22(1)** gives every arrested person the right to **consult and be defended** by a lawyer of his choice. **Art. 39A** directs the State to provide **free legal aid**. The BNSS backs this up: every accused may be defended by an advocate (**s.340**); in a **trial or appeal**, an accused without means gets an advocate **at State expense** (**s.341**); and an arrested person may meet an advocate **during interrogation**, though not throughout it (**s.38**).

These rights were won through painful stories. In **1979**, newspapers revealed that thousands of **undertrials in Bihar jails** had waited for years — some longer than the **maximum sentence** for their alleged offence. In *Hussainara Khatoon*, the Supreme

Court held that a speedy trial and free legal aid are part of **Art. 21**, and ordered mass releases. Two years later, in the **Bhagalpur blinding case** (*Khatri*, 1981), prisoners blinded in police custody had never been told they could get a free lawyer. The Court said the State's duty begins when the accused is **first produced before a Magistrate**, and the Magistrate **must inform** him of it. In *Kasab* (2012) the Court repeated this; it added that failure does not by itself spoil the trial unless it caused **material prejudice**, but the Magistrate faces **departmental action**.

Punishment, too, has changed its purpose: from **revenge** to **reform**. A first offender may be released on **probation** — good conduct instead of prison — under the **Probation of Offenders Act, 1958** and **s.401 BNSS**. A prisoner may get **parole** for a **specific reason** (a parent's illness, a child's wedding) — it does **not** count towards his sentence. **Furlough**, by contrast, is a periodic break after good conduct, to keep family ties; it **counts** as part of the sentence and is **not an absolute right** (*Asfaq*, 2017; *State of Gujarat v. Narayan*, 2021). **Open prisons**, vocational training and **community service** (a new punishment for petty offences) complete the correctional picture.

And prisoners do not lose their humanity at the jail gate. In *Sunil Batra* (1978), a death-row prisoner kept in **solitary confinement** before his appeals ended

won his case, the Court reaffirming *D.B.M. Patnaik* (1974): convicts are not, by mere reason of the conviction, denuded of all fundamental rights. In 1980, his letter about a warder's torture of another prisoner was treated as a **habeas corpus** petition. *Rama Murthy* (1997) listed **nine major problems** of prisons, and the **Model Prisons Act, 2023** proposes to replace the colonial **Prisons Act, 1894**.

Right to a lawyer — the legal chain

Art. 22(1) · Art. 39A · BNSS

- ✓ **Art. 22(1)** — an arrested person shall not be denied the right to **consult and be defended** by a legal practitioner of his choice.
- ✓ **Art. 39A** — State to provide **free legal aid** so that justice is not denied for economic or other disabilities.
- ✓ **s.340** — every accused may be **defended by an advocate** of his choice.
- ✓ **s.341** — in a **trial or appeal before a Court**, if the accused has no advocate and lacks means, the court shall assign an advocate **at State expense** (old s.304 CrPC was limited to trials before the Court of Session).
- ✓ **s.38** — an arrested person may meet an advocate of his choice **during interrogation**, though **not throughout** it.

✓ Legal Services Authorities Act, 1987 — NALSA, State and District Legal Services Authorities.

⚖️ *Case story*

Hussainara Khatoon v. Home Secretary, State of Bihar

1979 · Supreme Court of India

📰 Newspaper reports on Bihar jails

👧 An advocate who filed a habeas corpus petition

👥 Thousands of undertrial prisoners ⚖️ Supreme Court



Newspaper reports in 1979 revealed that thousands of undertrial prisoners in Bihar had been in jail for years — many for periods **longer than the maximum punishment** for the offences they were accused of. A habeas corpus petition was filed on their behalf.

The Supreme Court (Bhagwati J.) held that the **right to a speedy trial** is implicit in **Art. 21**, and that **free legal aid** to the poor is part of 'reasonable, fair and just' procedure (read with Art. 39A). It ordered the release of large numbers of undertrials, many on personal bond.

> ***Held*** → **Speedy trial** and **free legal aid** are part of the fundamental right to life and personal liberty.

> 🔗 ***How it locks into the section***
>
> This case is the root of **s.479 BNSS** (undertrial release after half / one-third of the maximum) and of the legal-aid sections.

⚖️ ***Case story***

Khatri v. State of Bihar (Bhagalpur blinding case)

1981 · Supreme Court of India

👁️ Undertrial prisoners blinded in police custody

👨‍⚖️ Magistrates who never told them of legal aid

⚖️ Supreme Court



Undertrial prisoners in Bhagalpur, Bihar, had been **blinded** while in police custody. When their case reached the Supreme Court, it found that they had not been given legal representation when produced before the Magistrates.

The Court held that the State's duty to provide **free legal aid** starts when the accused is **first produced before the Magistrate** and continues at every remand; the Magistrate must **inform** the accused of this right. The State cannot plead financial constraints.

> ***Held*** → Free legal aid is a **constitutional right** of an indigent accused from the stage of **first production**; Magistrates must inform the accused of it.

🔗 How it locks into the section

Mohd. Ajmal Amir Kasab v. State of Maharashtra (2012) repeated it: the right to legal aid arises when the accused is first produced before the Magistrate, who must tell him of it; failure does not by itself vitiate the trial unless it caused **material prejudice**, but the Magistrate is liable to **departmental action**.

Correctional methods — from punishment to reform



Probation

release of an offender on good conduct instead of prison — Probation of Offenders Act 1958; s.401 BNSS



Parole

temporary release of a convict for a specific reason (illness, family event) — does **not** count towards the sentence



Furlough

periodic release as a matter of good conduct, to keep family ties — not tied to a specific reason



Open prisons

minimal security; prisoners work and live with families nearby



Community service

new punishment for petty offences under BNS s.4(f); BNSS s.23



Education & work

vocational training, wages, remission for good conduct

Parole vs furlough (Asfaq v. State of Rajasthan, 2017) COMPARE

Parole

- for a **specific cause** — illness, death, marriage in family
- short-term; does **not** count as part of the sentence
- discretionary

VS

Furlough

- **no specific reason** needed — a break after a period of good conduct
- counts as **part of sentence**
- not an absolute right — granted under prison rules (State of Gujarat v. Narayan, 2021)

Case story

Sunil Batra v. Delhi Administration

1978 / 1980 · Supreme Court of India

Sunil Batra (death-row prisoner, Tihar Jail) · A fellow prisoner's letter · Supreme Court

Batra (1978)

I am kept in solitary confinement just because I am sentenced to death — before my appeals end!

Supreme Court

Solitary confinement is not part of the sentence. Prisoners keep their fundamental rights.

Letter (1980)

A warder pushed a rod into a prisoner to extort money...

Supreme Court

We treat this letter as a writ petition. Prison walls do not keep out the Constitution.

In 1978, Sunil Batra, a death-row convict, challenged his **solitary confinement**; the Court held that such confinement before the sentence becomes final is not permitted by the law, and, reaffirming *D.B.M. Patnaik* (1974), that convicts are not, by mere reason of the conviction, denuded of all the fundamental rights.

In 1980, a letter from Batra about the torture of a fellow prisoner by a warder was treated as a **habeas corpus petition**. The Court laid down guidelines for prison administration, prisoners' grievance redressal and visits by judicial officers.

> ***Held*** → Prisoners retain fundamental rights (Arts. 14, 19, 21) consistent with incarceration; courts can intervene against **prison torture**.

> 🔗 ***How it locks into the section***
> Correctional approach — later **Rama Murthy v. State of Karnataka (1997)** listed **nine major problems** of prisons (overcrowding, delay in trial, torture, health, etc.) and the **Model Prisons Act 2023** (Ministry of Home Affairs) proposed to replace the Prisons Act 1894.

✍️ Write it in the exam like this

Q. Explain the right of an accused to legal aid and the correctional methods in prisons.

1. Constitutional base — Arts. 21, 22(1), 39A; Legal Services Authorities Act 1987.
2. BNSS — ss.38, 340, 341.
3. Cases — Hussainara Khatoon (1979); Khatri (1981); Kasab (2012).
4. Correctional methods — probation (s.401, PO Act 1958), parole vs furlough (Asfaq), open prisons, community service.
5. Prisoners' rights — Sunil Batra; Rama Murthy; Model Prisons Act 2023.
6. Conclude — reformative theory.

Quick self-test ANSWERS BELOW EACH

Q1. From what stage does the right to free legal aid begin?

From the first production before the Magistrate (Khatri, 1981; Kasab, 2012).

Q2. Which BNSS section gives legal aid at State expense in trials and appeals?

s.341 (old s.304 CrPC).

Q3. Parole vs furlough — one difference.

Parole needs a specific reason and does not count towards the sentence; furlough is a periodic break for good conduct and counts towards the sentence.

Asked in past papers 11 QUESTIONS · 2013–2020

2013 · Part A	Parole
2013 · Part C	Satish killed his wife by giving poison. He committed the crime for first time. Whether he can be released on probation?
2014 · Part A	Probation
2014 · Part B	What are the salient features of Probation of Offenders Act?
2015 · Part A	Probation
2017 · Part A	Parole
2018 · Part A	Legal aid to an indigent accused.
2018 · Part A	The Defence Counsel.
2018 · Part B	Write the salient features of the Probation of Offenders Act, 1958.
2019 · Part C	X killed his wife by giving poison. He committed the crime for first time. Can be released on probation?
2020 · Part A	Parole

★ *Memory hook*

No lawyer, no fair trial. Hussainara = speedy trial + legal aid. Khatri = from **first production**. Batra = prisoners keep rights.

CHAPTER 10 · 10 PARTS

Constitution and criminal procedure

Arts. 20, 21, 22 · rights of the arrested · fair trial

> **Big idea**
>
> The **Constitution** is the master key of criminal procedure. Every arrest, search, interrogation and trial must pass the test of **Arts. 20, 21 and 22**.

📖 The story of this topic

Every police action is tested against the **Constitution**. Let us walk with Arun, a young engineer, from the moment the police knock on his door.

The arrest. In *Joginder Kumar* (1994), a young advocate was 'called for questioning' and then held for five days, his family not told where he was. The Supreme Court said the **power** to arrest is one thing; the **justification** is another — no arrest just because it is lawful. So Arun must be told the **grounds of arrest** (**Art. 22(1)**, **s.47**) and, if the offence is bailable, his right to **bail**. A relative or friend must be **informed** (**s.48**). The police must follow the **D.K. Basu** (1997) rules — visible **name tags**, an **arrest memo** signed by a witness and by Arun, a **medical examination**, and the arrest shown in the police **control room**. Most of

these are now in **ss.36–37 and s.53**. A woman may not be arrested after sunset and before sunrise except in exceptional cases, by a woman officer, with a Magistrate's prior permission (**s.43(5)**).

The 24 hours. Arun must be produced before the **nearest Magistrate within 24 hours**, excluding journey time (**Art. 22(2)**, **s.58**). Beyond that, only the Magistrate can order custody (**s.187**).

The questioning. The police hand Arun a long list of questions. Must he answer? In *Nandini Satpathy* (1978), a former Chief Minister of Odisha refused to answer written police questions in an assets case. The Court held that **Art. 20(3)** — no person accused shall be **compelled to be a witness against himself** — reaches the **police station**, not just the courtroom. Arun may stay **silent** on incriminating questions (**s.180(2)**) and may meet a lawyer **during** (not throughout) interrogation (**s.38**). Can he be forced into a **narco-analysis** or **lie-detector** test? *Selvi* (2010) says no — that violates Arts. 20(3) and 21.

The trial. All of this flows from *Maneka Gandhi* (1978), where a passport was impounded without a hearing. The Court held that 'procedure established by law' under **Art. 21** must be fair, just and reasonable, not arbitrary. So Arun is entitled to a **speedy, fair trial** with a lawyer. And if he is tried and **acquitted** or **convicted**, he cannot be tried again for the **same**

offence (**s.337**, autrefois acquit / convict). **Art. 20(2)** gives a narrower protection — it applies only where he was **prosecuted and punished**. Finally, **Art. 20(1)**: he cannot be punished under a law made **after** the act, or given a heavier punishment than the law allowed when he acted.

Constitutional guarantees and their BNSS partners TABLE

Article	Guarantee	BNSS partner
20(1)	no **ex post facto** criminal law; no heavier punishment than at the time of offence	—
20(2)	no person **prosecuted and punished twice** for the same offence (double jeopardy)	**s.337** — autrefois acquit / convict
20(3)	no person accused **compelled to be a witness against himself**	s.180 (right to stay silent on self-incriminating questions); s.183 (voluntary confessions)
21	life and personal liberty — only by **fair, just and reasonable** procedure	whole Code; speedy trial; legal aid; bail
22(1)	told **grounds of arrest**; right to **consult a lawyer**	s.47 (grounds & right to bail); s.38 (lawyer during interrogation)

Article	Guarantee	BNSS partner
22(2)	produced before the **nearest Magistrate within 24 hours** (excluding journey time)	s.58 · s.187
39A	free legal aid	s.341
50	separation of judiciary from executive	s.6 — Judicial vs Executive Magistrates

Rights of an arrested person — asked repeatedly

📋
Grounds of arrest
told the full particulars of the offence s.47

💰
Right to bail
told he may be released on bail if bailable s.47(2)

📞
Inform a friend
a relative or friend informed of arrest and place of detention s.48

👩‍⚖️
Meet a lawyer
during interrogation, not throughout s.38

⏱️
24 hours
produced before a Magistrate s.58

🩺
Medical exam
examination by a medical officer s.53

🚺
Women
arrest after sunset and before sunrise only in exceptional cases, by a woman officer, with Magistrate's prior permission s.43(5)

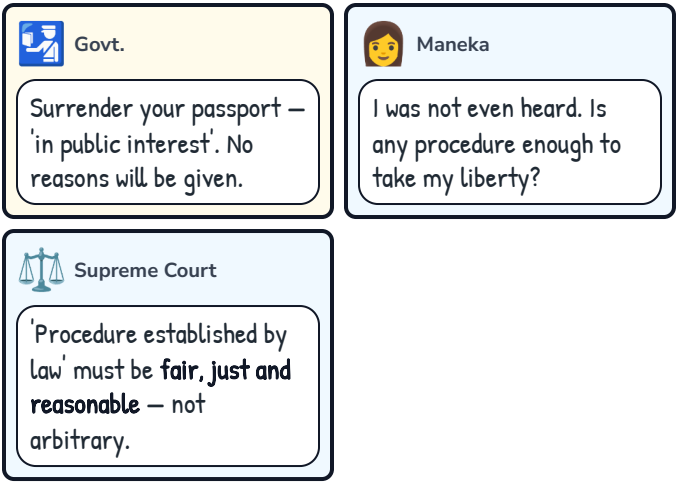
FREE
Free legal aid
Art. 39A; s.341

⚖️ *Case story*

Maneka Gandhi v. Union of India

1978 · Supreme Court of India (seven judges)

👩 Maneka Gandhi (journalist) · 🛂 Passport authority · ⚖️ Supreme Court



Maneka Gandhi's passport was impounded under the Passports Act 'in public interest', without a hearing and without reasons. She challenged it under Arts. 14, 19 and 21.

The Court overruled the narrow approach of *A.K. Gopalan*: Arts. 14, 19 and 21 are **interconnected**, and the 'procedure' under Art. 21 must be **right, just and fair**, not arbitrary, fanciful or oppressive — it must include natural justice.

> ***Held*** → Any law depriving personal liberty must prescribe a **fair, just and reasonable** procedure.

> 🔗 ***How it locks into the section***
> Every criminal-procedure right — legal aid, speedy trial, bail, arrest safeguards — flows from this reading of **Art. 21**.

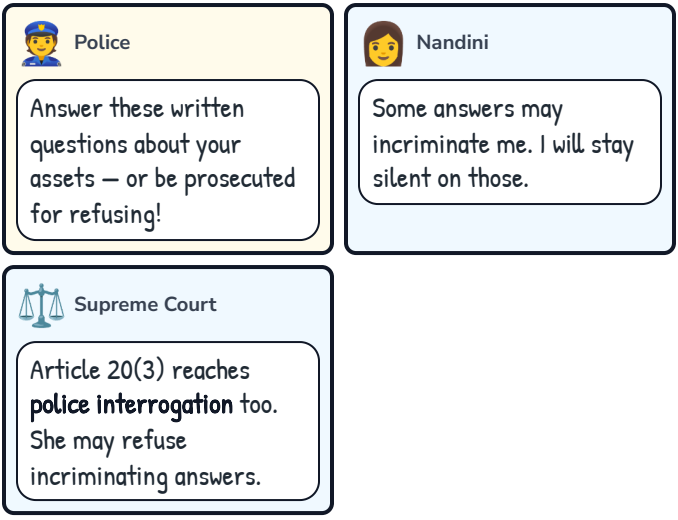
⚖️ *Case story*

Nandini Satpathy v. P.L. Dani

1978 · Supreme Court of India (Krishna Iyer J.)

👩 Nandini Satpathy (former Chief Minister of Odisha)

👮 Police officer ⚖️ Supreme Court



In a disproportionate-assets investigation, the police gave Nandini Satpathy a long list of questions under **s.161 CrPC** (now **s.180 BNSS**). She refused to answer, and was prosecuted for refusing.

The Court held that the protection of **Art. 20(3)** is not limited to the courtroom — it extends to the **police station** and to any person **accused** (including a suspect in an FIR). A person may refuse to answer questions whose answers would tend to incriminate him. The Court also said the accused should be allowed a lawyer during interrogation where possible.

Held → The **right to silence** against self-incrimination applies at the stage of **police interrogation**.

🔗 *How it locks into the section*

BNSS **s.38** (lawyer during interrogation) and **s.180(2)** (need not answer incriminating questions) carry this forward.

⚖️ *Case story*

D.K. Basu v. State of West Bengal

1997 · Supreme Court of India

✉️ D.K. Basu (Executive Chairman, Legal Aid Services, West Bengal)

👮 Police ⚖️ Supreme Court

✉️ **Letter**

Custodial deaths are being reported in the newspapers again and again. Please act.

⚖️ **Supreme Court**

Treated as a writ petition. Here are **eleven requirements** for every arrest.

👮 **Police**

Name tags, arrest memo, witness, inform a relative…

⚖️ **Supreme Court**

Break them — and face departmental action and **contempt**.

D.K. Basu wrote to the Chief Justice of India about reports of **deaths in police custody**. The letter was treated as a PIL.

The Court laid down **11 requirements**: police to wear **visible name tags**; prepare an **arrest memo** attested by a witness and countersigned by the arrestee; inform a **relative or friend**; tell the arrestee of this right; diary entry; **medical examination** every 48 hours; copies of documents to the Magistrate; lawyer during interrogation (not throughout); a **police control room** display of arrests, etc.

> ***Held*** → Custodial torture violates **Art. 21**; the 11 guidelines are binding, and the State is liable to pay **compensation**.

> 🔗 ***How it locks into the section***
>
> Most of these are now in the Code itself — **s.36** (arrest memo, name tags), **s.48** (inform relative), **s.37** (designated police officer & control room).

⚖️ ***Case story***

Joginder Kumar v. State of U.P.

1994 · Supreme Court of India

🧑‍💼 Joginder Kumar (a young advocate) 👮 SSP, Ghaziabad ⚖️ Supreme Court



Police

Come to the office for some questioning.



Joginder

Five days later — still detained, my family not told where I am.



Supreme Court

The **power** to arrest is one thing; the **justification** is another.

A young advocate was called to a police office and then kept in detention for five days without his family being told where he was or why.

The Court held that no arrest should be made **only because it is lawful** to do so; there must be a **reasonable justification** — the police must be satisfied that the complaint is genuine and that arrest is necessary. An arrested person has the right to have **someone informed** of the arrest, and must be told of this right.

> ***Held*** → Arrest needs **justification**, not merely power; the right to inform a friend/relative is part of Arts. 21 and 22.

> 🔗 ***How it locks into the section***
>
> Seed of **s.35** (arrest only when necessary; notice instead of arrest) and **s.48** (inform relative).

📌 Also remember

Selvi v. State of Karnataka (2010): **narco-analysis, polygraph and brain-mapping** without consent violate **Arts. 20(3) and 21**. With consent, results are not admissible by themselves, but information discovered as a result may be used.

✍️ Write it in the exam like this

Q. Explain the constitutional safeguards available to an accused/arrested person.

1. Introduction — Art. 21 after Maneka Gandhi: fair, just, reasonable procedure.
2. Art. 20(1), (2), (3) — with s.337, s.180; Nandini Satpathy; Selvi.
3. Art. 22(1), (2) — grounds, lawyer, 24 hours (ss.47, 38, 58).
4. Rights of arrested persons — ss.35–38, 43(5), 47, 48, 53; D.K. Basu; Joginder Kumar.
5. Legal aid and speedy trial — Art. 39A; Hussainara.
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. What is autrefois acquit?

A person once tried and acquitted (or convicted) by a competent court cannot be tried again for the same offence — s.337 BNSS; Art. 20(2) applies only where the person was both prosecuted **and punished** (autrefois convict); s.337 is wider and also bars retrial after acquittal.

Q2. Within what time must an arrested person be produced before a Magistrate?

Within 24 hours, excluding journey time — Art. 22(2), s.58 BNSS.

Q3. Can the police force a suspect to undergo narco-analysis?

No — Selvi (2010): it violates Arts. 20(3) and 21.

Asked in past papers

14 QUESTIONS · 2013–2020

2013 · Part A	Rights of Arrested person
2013 · Part B	Define arrest. How a person is arrested in non-cognizable offence?
2014 · Part A	Fair trial
2014 · Part B	Explain the constitutional validity of search and seizure.
2016 · Part A	Fair trial
2017 · Part A	Autrofois convict
2017 · Part A	Rights of accused
2017 · Part B	Elucidate the constitutional validity of search and seizure.
2018 · Part A	Presumption of innocence.
2018 · Part B	Explain the concept of 'fair Trial' and enumerate the principle features of fair trial.
2018 · Part B	What are the rights of arrested persons under the Code of Criminal Procedure?
2018 · Part C	'A' was prosecuted for committing theft and acquitted by the court. Again he is prosecuted for the same offence on the ground that some new evidence has been discovered later. Is it legal? Examine.
2019 · Part C	A is charged before the session court and convicted of the culpable homicide of B. A again was tried on the same facts for the murder of B. Justify.
2020 · Part A	Rights of arrested person

★ *Memory hook*

20 = no retro, no double, no self-incrimination. 21 = fair procedure. 22 = grounds, lawyer, 24 hours. Cases: Maneka · Nandini · D.K. Basu · Joginder · Selvi.

You have read the whole of Unit I.

Now close your eyes and tell each case story aloud once.

Guruji Sri Sri Sri Guru Viswa Spoorthi

🙏 **Spoorthi Oum** 🙏

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